Master Table: Cases, BNS Sections, Vehicle Outcome and Complete Flow

How to read the flow: Day 0 = vehicle produced before the court. BNSS 497: statement and photo/video within **14 days**; court order within **30 days** after that (about **45 days** in all). Unclaimed property: **6 months** after proclamation (BNSS 503–504), then State disposal and auction. Supreme Court (Sunderbhai) outer limit: 6 months from production. Special-law cases (rows 10, 11) follow their own Act, not these timelines. BNS names the offence only; BNSS and special laws decide the vehicle's fate.

No.	Case (what happened)	BNS section	Offence in brief	Seizure / disposal law	Vehicle outcome and time period	Complete flow (police station to auction)	How the government can use it
1	Vehicle stolen from owner; police recover it	303(2)	Theft. Dishonest taking of movable property out of possession without consent; vehicle theft is expressly theft.	BNSS 106, 497, 503	Owner known: Magistrate may deliver it to him on conditions (503(2)); photos and panchnama first. Court order within about 45 days (497). If owner unknown: proclamation, 6 months to claim.	Police station: FIR, vehicle recovered and seized (106) → Reported to Magistrate forthwith; produced before court with photos and panchnama → **Day 14:** statement of property (497(2)) + photo/video → **Day 45:** court order (497(5)): delivery to owner on bond (503(2)) → If owner unknown: proclamation; **6 months** to claim → No claimant, no proof of lawful title: State disposal and **auction** (504)	**Legally Locked.** No government use while the owner is known; the vehicle belongs to the owner. Government role: track it, alert the owner and monitor the 14/45-day and 6-month deadlines. Only after an unclaimed order under 504: reuse by a department or auction.
2	Another person is found using or holding the stolen vehicle	317(2); 317(4) habitual dealing	Receiving stolen property: up to 3 years; habitual dealing: life or up to 10 years.	BNSS 106, 497, 503	Stolen property stops being stolen once it reaches the person lawfully entitled, so it is returned to the true owner, not kept by the State. Same 45-day / 6-month rules.	Police station: vehicle seized from possessor (106); possessor's trial continues separately → Reported to Magistrate; produced in court; photos and panchnama → **Day 14:** statement; **Day 45:** court order → True owner proves title: vehicle returned on bond (not State property) → If true owner cannot be traced: proclamation, **6 months** → No claimant: State disposal and **auction** (504)	**Legally Locked.** Goes back to the true owner, so no government use. Only if nobody proves title and a 504 order is passed: department reuse or auction.

No.	Case (what happened)	BNS section	Offence in brief	Seizure / disposal law	Vehicle outcome and time period	Complete flow (police station to auction)	How the government can use it
3	Vehicle used to commit or carry out another offence (e.g. moving stolen goods)	Depends on main offence (e.g. 303, 317)	Vehicle is evidence and an instrument of crime.	BNSS 497, then 498	Interim custody on bond is normally possible pending trial. At judgment the court may order confiscation, destruction or delivery (498). Appeal under BNSS 500.	Police station: vehicle seized as case property (106) → Produced before court; **Day 14** statement; **Day 45** order → Interim custody (supurdagi) to owner on bond, or kept as case property → Trial ends: judgment under 498 (confiscation / destruction / delivery) → Appeal period (BNSS 500) → If confiscated: vests in State, then reuse or **auction** as per State rules	**Locked, then Conditionally Usable.** During trial: no use unless the court gives interim custody to a government department (booking request with court order and bond). After confiscation under 498 and appeal period: reuse by department or auction.
4	Road accident: rash or negligent driving, no death	281	Rash driving on a public way endangering life or safety of others.	BNSS 497; Motor Vehicles Act detention rules	Vehicle needed only for mechanical inspection, then normally released on supurdagi. Supreme Court: if owner/insurer does not take it, court may order sale; order within 6 months.	Police station: vehicle seized after accident → Mechanical inspection; produced before court with photos and panchnama → **Day 14 / Day 45:** statement and court order → Released on supurdagi to owner or insurer → If nobody takes it: court orders sale (Sunderbhai) within **6 months** of production → Court-ordered **auction**; proceeds as the court directs	**Legally Locked.** Normally released to owner or insurer, so no government use. Government use only if the court orders custody to a department. If court orders sale: auction, proceeds as the court directs.
5	Accident causing death	106(1)	Death by negligence (not culpable homicide): up to 5 years.	BNSS 497	Same as above. Insurance company is a key claimant for vehicles in accident cases.	Police station: vehicle seized, FIR registered → Mechanical inspection; produced before court; photos and panchnama → **Day 14 / Day 45:** statement and court order → Release on bond to owner or insurance company → Unclaimed: court orders sale within **6 months** of production → **Auction** by court direction	**Legally Locked.** Same as row 4. Insurer is the main claimant; government use only on a specific court order.

No.	Case (what happened)	BNS section	Offence in brief	Seizure / disposal law	Vehicle outcome and time period	Complete flow (police station to auction)	How the government can use it
6	Driver flees after fatal accident without reporting	106(2)	Hit and run: up to 10 years. Reports indicate this sub-section was kept out of the initial commencement; check current status.	BNSS 497	Vehicle is case property; interim release possible on bond. Disposal timeline as in row 4.	Police station: vehicle seized or found abandoned → Produced before court; photos and panchnama → **Day 14 / Day 45:** statement and court order (interim release on bond possible) → Owner/insurer does not claim it → Within **6 months** of production: court-ordered sale → **Auction**; proceeds as per court	**Legally Locked.** Same as row 4. Interim custody to a department possible only by court order; otherwise court-ordered sale after 6 months.
7	Fake registration number, tampered chas-sis/engine number, forged papers	318 Cheating; 336 Forgery (verify exact sub-sections)	Deception to obtain property; making false documents.	BNSS 106, 497, 503–504	Held as case property. If nobody can prove lawful title it is treated as unclaimed: proclamation, 6 months, then State disposal (504) if possessor cannot show lawful acquisition.	Police station: vehicle seized; chassis/engine number verification → Reported to Magistrate; produced in court → **Day 14:** statement; **Day 45:** court order (held as case property) → Genuine owner proves title: delivered to him → Otherwise: proclamation; **6 months** to claim → No lawful title shown: State disposal and **auction** (504)	**Legally Locked.** Evidence; no use. After a 504 order (no lawful title): reuse by a department or auction. Papers and chassis/engine numbers must be cleared first (check Motor Vehicles rules before reuse).
8	Abandoned vehicle found; owner unknown; no accused	No BNS section unless theft suspected (then 303)	Seized because found in suspicious circumstances (BNSS 106(1)).	BNSS 503(2), 504, 505	Magistrate detains it and issues proclamation. Claim period 6 months. No claimant: State may take and sell (504). If value below Rs. 10,000: sale at any time (505).	Police station: vehicle found and seized (106(1)) → Reported to Magistrate; photos and panchnama → Magistrate orders detention and issues **proclamation** (503(2)) → **6 months** for owner to claim → No claimant: State Government disposal (504) → **Auction**. If value below Rs. 10,000: Magistrate may order sale at any time (505)	**Locked, then Fully Usable.** Locked during the 6-month claim period. After a 504 order: State may reuse it (department booking) or auction it. If value is below Rs. 10,000: Magistrate can order sale at any time (505).

No.	Case (what happened)	BNS section	Offence in brief	Seizure / disposal law	Vehicle outcome and time period	Complete flow (police station to auction)	How the government can use it
9	Old, rusted, low-value vehicle lying for years	As per original case	Value falls every month in open storage.	BNSS 497(1), 505; SC directions	Court may order sale or disposal as expedient; photographs and panchnama must be on record before sale. Proceeds are held for the person entitled, then dealt with under 503–504.	Police station: vehicle lying as case property → Photos, videograph and panchnama placed on record → **Day 14:** statement; **Day 45:** court order for early sale (497(1) / 505) → **Auction** (sale only, ownership not yet changed) → Proceeds held for person entitled; claim within **6 months** → Unclaimed: proceeds go to State (504)	**Not suited for reuse.** Condition is poor, so the practical use is early court-ordered sale or scrap auction. Proceeds are held for the person entitled, then go to the State if unclaimed (504).
10	Liquor transport (MP): vehicle seized under State Excise Act	Not BNS. MP Excise Act, 1915, Sec. 34, 47-A, 47-D	Illegal transport of liquor.	Special law overrides general procedure	Collector may start confiscation (47-A). Once Collector's intimation reaches the criminal court, court cannot grant interim custody (47-D). Check latest MP High Court orders.	Police station / Excise: vehicle seized with liquor → Seizure report to Magistrate and to Collector → Collector issues confiscation notice (47-A); intimation sent to court → Court can no longer give interim custody (47-D) → Collector hearing and order (time as per the Act, not the 45-day rule) → Confiscation: vests in State, then **auction** or reuse; appeal as per Act	**Locked, then Fully Usable.** No use before the Collector's order, and no interim custody after intimation (47-D). After confiscation order and appeal period: vests in State, then department reuse or auction under State rules.
11	Drug case: vehicle used to carry narcotics	Not BNS. NDPS Act Sec. 60(3), 63	Conveyance used in NDPS offence is liable to confiscation.	Special law	Confiscation is decided by the court trying the offence after hearing any claimant (Sec. 63). Interim release is contested; MP High Court has dealt with it.	Police station: vehicle seized (NDPS 60(3)) → Reported to Magistrate / Special Court; photos and panchnama → Interim release contested (claimant must show no knowledge) → Trial in NDPS court → At judgment: Sec. 63 hearing of claimant → Confiscation: vests in State, then **auction** or reuse; or delivery if claimant succeeds	**Locked, then Fully Usable.** No use during trial. After the court's Sec. 63 confiscation order and appeal period: State reuse or auction. If the claimant succeeds, it is delivered to him instead.

No.	Case (what happened)	BNS section	Offence in brief	Seizure / disposal law	Vehicle outcome and time period	Complete flow (police station to auction)	How the government can use it
12	Trial ends in conviction	Offence as charged	–	BNSS 498, 500	Court orders confiscation, destruction or delivery. Confiscated property vests in the State and can be reused or auctioned as per State rules. Appeal possible.	Police station / court: case property held or on interim bond → Judgment of conviction → Order under 498: confiscation / destruction / delivery → Appeal period under BNSS 500 → If confiscated: vests in State (Rajyasaat) → Reuse by department or **auction** as per State rules (order number and date recorded)	**Fully Usable (Rajyasaat).** Confiscation order passed and appeal period over: internal reuse by police or another department (booking with order number and date), or auction. Sale proceeds follow State rules.
13	Trial ends in acquittal / discharge	–	–	BNSS 498	Vehicle is generally delivered to the person entitled unless the law requires otherwise.	Police station / court: vehicle held as case property → Acquittal or discharge → Order under 498: delivery to person entitled → Person entitled collects vehicle (bond discharged) → If nobody collects: proclamation, **6 months** (503–504) → Then State disposal and **auction**	**Legally Locked.** Delivered to the person entitled, so no government use. Only if nobody collects and a 504 order follows: reuse or auction.

Note: The last two columns are working summaries built from the report. "Government use" is possible only where a court order, a BNSS 504 order or a statutory confiscation order exists, and reuse or auction follows State rules (to be confirmed with the Home Department). The time limits are targets that courts often miss in practice. Verify against the official text, the MP Rules under BNSS 497(2) and a practising advocate before final submission.